



# ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session*

*Majority Research Staff*

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## **SB 1723: domestic violence; release conditions**

### **FINK FLOOR AMENDMENT**

1. Removes all language in the bill which amends current law, relating to awarding legal decision-making or parenting time in the context of domestic violence.
2. Provides that, after an order-of-protection hearing has occurred, the superior court in a Title 25 family-law action, may modify the order of protection, but only as it applies to a child who is both common to the parties and listed in the order of protection.

FINK FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1723  
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

The bill as proposed to be amended is reprinted as follows:

Section 1. Section 13-3602, Arizona Revised Statutes, is amended to read:

13-3602. Order of protection; procedure; contents; arrest for violation; penalty; protection order from another jurisdiction; definition

A. A person may file a verified petition, as in civil actions, with a magistrate, justice of the peace or superior court judge for an order of protection for the purpose of restraining a person from committing an act included in domestic violence. If the person is a minor, the parent, legal guardian or person who has legal custody of the minor shall file the petition unless the court determines otherwise. The petition shall name the parent, guardian or custodian as the plaintiff and the minor is a specifically designated person for the purposes of subsection G of this section. If a person is either temporarily or permanently unable to request an order, a third party may request an order of protection on behalf of the plaintiff. After the request, the judicial officer shall determine if the third party is an appropriate requesting party for the plaintiff. For the purposes of this section, notwithstanding the location of the plaintiff or defendant, any court in this state may issue or enforce an order of protection.

B. An order of protection shall not be granted:

1. Unless the party who requests the order files a written verified petition for an order.

2. Against a person who is less than twelve years of age unless the order is granted by the juvenile division of the superior court.

3. Against more than one defendant.

C. The petition shall state the:

1. Name of the plaintiff. The plaintiff's address and contact information shall be disclosed to the court for purposes of service and

1 notification. The address and contact information shall not be listed on  
2 the petition. Whether or not the court issues an order of protection, the  
3 plaintiff's address and contact information shall be maintained in a  
4 separate document or automated database and is not subject to release or  
5 disclosure by the court or any form of public access except as ordered by  
6 the court.

7 2. Name and address, if known, of the defendant.

8 3. Specific statement, including dates, of the domestic violence  
9 alleged.

10 4. Relationship between the parties pursuant to section 13-3601,  
11 subsection A and whether there is pending between the parties an action  
12 for maternity or paternity, annulment, legal separation or dissolution of  
13 marriage.

14 5. Name of the court in which any prior or pending proceeding or  
15 order was sought or issued concerning the conduct that is sought to be  
16 restrained.

17 6. Desired relief.

18 D. A fee shall not be charged for filing a petition under this  
19 section or for service of process. Each court shall provide, without  
20 charge, forms for purposes of this section for assisting parties without  
21 counsel. The court shall make reasonable efforts to provide the  
22 appropriate information to both parties on emergency and counseling  
23 services that are available in the local area.

24 E. The court shall review the petition, any other pleadings on file  
25 and any evidence offered by the plaintiff, including any evidence of  
26 harassment by electronic contact or communication, to determine whether  
27 the orders requested should issue without further hearing. The court  
28 shall issue an order of protection under subsection G of this section if  
29 the court determines that there is reasonable cause to believe any of the  
30 following:

31 1. The defendant may commit an act of domestic violence.

32 2. The defendant has committed an act of domestic violence within  
33 the past year or within a longer period of time if the court finds that  
34 good cause exists to consider a longer period.

35 F. For the purposes of determining the period of time under  
36 subsection E, paragraph 2 of this section, any time that the defendant has  
37 been incarcerated or out of this state shall not be counted. If the court  
38 denies the requested relief, it may schedule a further hearing within ten  
39 days, with reasonable notice to the defendant.

40 G. If a court issues an order of protection, the court may do any  
41 of the following:

42 1. Enjoin the defendant from committing a violation of one or more  
43 of the offenses included in domestic violence.

44 2. Grant one party the use and exclusive possession of the parties'  
45 residence on a showing that there is reasonable cause to believe that  
46 physical harm may otherwise result. If the other party is accompanied by a  
47 law enforcement officer, the other party may return to the residence on

1 one occasion to retrieve belongings. A law enforcement officer is not  
2 liable for any act or omission in the good faith exercise of the officer's  
3 duties under this paragraph. While the order of protection is in effect,  
4 if a party was granted the use and exclusive possession of the parties'  
5 residence and subsequently moves out of the ~~house~~ RESIDENCE, the party  
6 must file a notice in writing with the court within five days after moving  
7 out of the residence. After receiving the notification from the plaintiff,  
8 the court shall provide notice to the defendant that the plaintiff has  
9 moved out of the residence and of the defendant's right to request a  
10 hearing pursuant to subsection L of this section.

11 3. Restrain the defendant from contacting the plaintiff or other  
12 specifically designated persons and from coming near the residence, place  
13 of employment or school of the plaintiff or other specifically designated  
14 locations or persons on a showing that there is reasonable cause to  
15 believe that physical harm may otherwise result.

16 4. If the court finds that the defendant is a credible threat to  
17 the physical safety of the plaintiff or other specifically designated  
18 persons, prohibit the defendant from possessing or purchasing a firearm  
19 for the duration of the order. If the court prohibits the defendant from  
20 possessing a firearm, the court shall also order the defendant to transfer  
21 any firearm owned or possessed by the defendant immediately after service  
22 of the order to the appropriate law enforcement agency for the duration of  
23 the order. If the defendant does not immediately transfer the firearm,  
24 the defendant shall transfer the firearm within twenty-four hours after  
25 service of the order.

26 5. If the order was issued after notice and a hearing at which the  
27 defendant had an opportunity to participate, require the defendant to  
28 complete a domestic violence offender treatment program that is provided  
29 by a facility approved by the department of health services or a probation  
30 department or any other program deemed appropriate by the court.

31 6. Grant relief that is necessary for the protection of the alleged  
32 victim and other specifically designated persons and that is proper under  
33 the circumstances.

34 7. Grant the plaintiff the exclusive care, custody or control of  
35 any animal that is owned, possessed, leased, kept or held by the  
36 plaintiff, the defendant or a minor child residing in the residence or  
37 household of the plaintiff or the defendant, and order the defendant to  
38 stay away from the animal and forbid the defendant from taking,  
39 transferring, encumbering, concealing, committing an act of cruelty or  
40 neglect in violation of section 13-2910 or otherwise disposing of the  
41 animal.

42 8. FOLLOWING A HEARING, REQUIRE THE DEFENDANT TO PROVIDE  
43 IDENTIFYING INFORMATION TO THE PLAINTIFF, INCLUDING THE DEFENDANT'S  
44 RESIDENCE, PLACE OF EMPLOYMENT OR VEHICLE INFORMATION, ON A SHOWING THAT  
45 THE DEFENDANT HAS A PRIOR HISTORY OF HARMING THE PLAINTIFF AND THERE IS  
46 REASONABLE CAUSE TO BELIEVE THAT WITHOUT THIS INFORMATION PHYSICAL HARM  
47 WOULD OTHERWISE RESULT.

1 H. The court shall not grant a mutual order of protection. If  
2 opposing parties separately file verified petitions for an order of  
3 protection, the courts after consultation between the judges involved may  
4 consolidate the petitions of the opposing parties for hearing. This does  
5 not prohibit a court from issuing cross orders of protection.

6 I. After granting an order of protection, the court shall provide  
7 the order to a law enforcement agency or a constable as set forth in  
8 subsection J of this section for service or to an entity that is  
9 authorized in subsection K of this section to serve process. The agency  
10 or entity serving the order shall provide confirmation of service to the  
11 plaintiff as soon as practicable. If service of an order cannot be  
12 completed within fifteen days after the agency or entity receives the  
13 order, the agency or entity that is attempting service shall notify the  
14 plaintiff and continue to attempt service. This notification may be  
15 completed by a victim notification system, if available.

16 J. If the order of protection is provided to a law enforcement  
17 agency or a constable, service of an order of protection is as follows:

18 1. For each order of protection that is issued by a municipal  
19 court, if the defendant can be served within that city or town, the order  
20 shall be served by the law enforcement agency of that city or town. If  
21 the order can be served in another city or town, the order shall be served  
22 by the law enforcement agency of that city or town. If the order cannot be  
23 served within a city or town, the order shall be served by the sheriff or  
24 constable of the county in which the defendant can be served.

25 2. For each order of protection that is issued by a justice of the  
26 peace, the order of protection shall be served by the sheriff or constable  
27 of the county in which the defendant can be served or by a municipal law  
28 enforcement agency.

29 3. For each order of protection that is issued by a superior court  
30 judge or commissioner, the order of protection shall be served by the  
31 sheriff or constable of the county where the defendant can be served.

32 K. In addition to persons authorized to serve process pursuant to  
33 rule 4(d) of the Arizona rules of civil procedure, a peace officer or a  
34 correctional officer as defined in section 41-1661 who is acting in the  
35 officer's official capacity may serve an order of protection that is  
36 issued pursuant to this section. Service of the order of protection has  
37 priority over other service of process that does not involve an immediate  
38 threat to the safety of a person.

39 L. At any time during the period during which the order is in  
40 effect, a party who is under an order of protection or who is restrained  
41 from contacting the other party is entitled to one hearing on written  
42 request. No fee may be charged for requesting a hearing. A hearing that is  
43 requested by a party who is under an order of protection or who is  
44 restrained from contacting the other party shall be held within ten days  
45 from the date requested unless the court finds good cause to continue the  
46 hearing. If exclusive use of the home is awarded, the hearing shall be  
47 held within five days from the date requested. The hearing shall be held

1 at the earliest possible time. An ex parte order that is issued under  
2 this section shall state on its face that the defendant is entitled to a  
3 hearing on written request and shall include the name and address of the  
4 judicial office where the request may be filed. After the hearing, the  
5 court may modify, quash or continue the order. If the exclusive use of  
6 the home is awarded to the party, the court, on written request of a  
7 party, may hold additional hearings at any time if there is a change in  
8 circumstances related to the primary residence. [AFTER A HEARING UNDER  
9 THIS PARAGRAPH HAS BEEN CONDUCTED, THE SUPERIOR COURT IN A TITLE 25 ACTION  
10 MAY MODIFY THE ORDER OF PROTECTION ONLY AS TO A CHILD WHO IS COMMON TO THE  
11 PARTIES AND WHO IS INCLUDED ON THE ORDER OF PROTECTION. SUCH A  
12 MODIFICATION MAY ONLY BE MADE IF IT IS IN THE BEST INTEREST OF THE CHILD,  
13 AND THE MODIFICATION SHALL BE LIMITED SOLELY TO EFFECTUATING PARENTING  
14 TIME ORDERS BETWEEN THE DEFENDANT AND THE COMMON CHILD.]

15 M. The order shall include the following statement:

16 Warning

17 This is an official court order. If you disobey this  
18 order, you will be subject to arrest and prosecution for the  
19 crime of interfering with judicial proceedings and any other  
20 crime you may have committed in disobeying this order.

21 N. An order of protection that is not served on the defendant  
22 within one year after the date that the order is issued expires. An order  
23 is effective on the defendant on service of a copy of the order and  
24 petition. An order expires two years after service on the defendant. A  
25 modified order is effective on service and expires two years after service  
26 of the initial order and petition.

27 O. A supplemental information form that is used by the court or a  
28 law enforcement agency solely for the purposes of service of process on  
29 the defendant and that contains information provided by the plaintiff is  
30 confidential.

31 P. Each affidavit, declaration, acceptance or return of service  
32 shall be filed as soon as practicable but not later than seventy-two  
33 hours, excluding weekends and holidays, with the clerk of the issuing  
34 court or as otherwise required by court rule. This filing shall be  
35 completed in person, electronically or by fax.

36 Q. The supreme court shall maintain a central repository for orders  
37 of protection. Within twenty-four hours after the affidavit, declaration,  
38 acceptance or return of service has been filed, excluding weekends and  
39 holidays, the court from which the order or any modified order was issued  
40 shall enter the order and proof of service into the supreme court's  
41 central repository for orders of protection. The supreme court shall  
42 register the order with the national crime information center. The  
43 effectiveness of an order does not depend on its registration, and for  
44 enforcement purposes pursuant to section 13-2810, a copy of an order of  
45 the court, whether or not registered, is presumed to be a valid existing  
46 order of the court for a period of two years from the date of service of  
47 the order on the defendant.

1           R. A peace officer, with or without a warrant, may arrest a person  
2 if the peace officer has probable cause to believe that the person has  
3 violated section 13-2810 by disobeying or resisting an order that is  
4 issued in any jurisdiction in this state pursuant to this section, whether  
5 or not such violation occurred in the presence of the officer. Criminal  
6 violations of an order issued pursuant to this section shall be referred  
7 to an appropriate law enforcement agency. The provisions for release  
8 under section 13-3883, subsection A, paragraph 4 and section 13-3903 do  
9 not apply to an arrest made pursuant to this section. For the purposes of  
10 this section, any court in this state has jurisdiction to enforce a valid  
11 order of protection that is issued in this state and that has been  
12 violated in any jurisdiction in this state.

13           S. A person who is arrested pursuant to subsection R of this  
14 section may be released from custody in accordance with the Arizona rules  
15 of criminal procedure or any other applicable statute. An order for  
16 release, with or without an appearance bond, shall include pretrial  
17 release conditions that are necessary to provide for the protection of the  
18 alleged victim and other specifically designated persons and may provide  
19 for any other additional conditions that the court deems appropriate,  
20 including participation in any counseling programs available to the  
21 defendant. The agency with custody of the defendant shall make reasonable  
22 efforts to contact the victim and other specifically designated persons in  
23 the order of protection, if known to the custodial agency, who requested  
24 notification immediately on release of the arrested person from custody.

25           T. The remedies provided in this section for enforcement of the  
26 orders of the court are in addition to any other civil and criminal  
27 remedies available. The superior court shall have exclusive jurisdiction  
28 to issue orders of protection in all cases if it appears from the petition  
29 that an action for maternity or paternity, annulment, legal separation or  
30 dissolution of marriage is pending between the parties. A municipal court  
31 or justice court shall not issue an order of protection if it appears from  
32 the petition that an action for maternity or paternity, annulment, legal  
33 separation or dissolution of marriage is pending between the parties.  
34 After issuance of an order of protection, if the municipal court or  
35 justice court determines that an action for maternity or paternity,  
36 annulment, legal separation or dissolution of marriage is pending between  
37 the parties, the municipal court or justice court shall stop further  
38 proceedings in the action and forward all papers, together with a  
39 certified copy of docket entries or any other record in the action, to the  
40 superior court where they shall be docketed in the pending superior court  
41 action and shall proceed as though the petition for an order of protection  
42 had been originally brought in the superior court. Notwithstanding any  
43 other law and unless prohibited by an order of the superior court, a  
44 municipal court or justice court may hold a hearing on all matters  
45 relating to its ex parte order of protection if the hearing was requested  
46 before receiving written notice of the pending superior court action. ~~NO~~  
47 ~~AN~~ order of protection shall ~~NOT~~ be invalid or determined to be

1 ineffective merely because it was issued by a lower court at a time when  
2 an action for maternity or paternity, annulment, legal separation or  
3 dissolution of marriage was pending in a higher court. After a hearing  
4 with notice to the affected party, the court may enter an order requiring  
5 any party to pay the costs of the action, including reasonable attorney  
6 fees, if any. An order that is entered by a justice court or municipal  
7 court after a hearing pursuant to this section may be appealed to the  
8 superior court as provided in title 22, chapter 2, article 4, section  
9 22-425, subsection B and the superior court rules of civil appellate  
10 procedure without regard to an amount in controversy. ~~NO~~ A fee may NOT be  
11 charged to either party for filing an appeal. For the purposes of this  
12 subsection, "pending" means, with respect to an action for annulment,  
13 legal separation or dissolution of marriage or for maternity or paternity,  
14 either that:

15 1. An action has been commenced but a final judgment, decree or  
16 order has not been entered.

17 2. A post-decree proceeding has been commenced but a judgment,  
18 decree or order finally determining the proceeding has not been entered.

19 U. A peace officer who makes an arrest pursuant to this section or  
20 section 13-3601 is not civilly or criminally liable for the arrest if the  
21 officer acts on probable cause and without malice.

22 V. A valid protection order that is related to domestic or family  
23 violence and that is issued by a court in another state, a court of a  
24 United States territory or a tribal court shall be accorded full faith and  
25 credit and shall be enforced as if it were issued in this state for as  
26 long as the order is effective in the issuing jurisdiction. For the  
27 purposes of this subsection:

28 1. A protection order includes any injunction or other order that  
29 is issued for the purpose of preventing violent or threatening acts or  
30 harassment against, contact or communication with or physical proximity to  
31 another person. A protection order includes temporary and final orders  
32 other than support or child custody orders that are issued by civil and  
33 criminal courts if the order is obtained by the filing of an independent  
34 action or is a pendente lite order in another proceeding. The civil order  
35 shall be issued in response to a complaint, petition or motion that was  
36 filed by or on behalf of a person seeking protection.

37 2. A protection order is valid if the issuing court had  
38 jurisdiction over the parties and the matter under the laws of the issuing  
39 state, a United States territory or an Indian tribe and the person against  
40 whom the order was issued had reasonable notice and an opportunity to be  
41 heard. If the order is issued ex parte, the notice and opportunity to be  
42 heard shall be provided within the time required by the laws of the  
43 issuing state, a United States territory or an Indian tribe and within a  
44 reasonable time after the order was issued.

45 3. A mutual protection order that is issued against both the party  
46 who filed a petition or a complaint or otherwise filed a written pleading



1 for protection against abuse and the person against whom the filing was  
2 made is not entitled to full faith and credit if either:

3 (a) The person against whom an initial order was sought has not  
4 filed a cross or counter petition or other written pleading seeking a  
5 protection order.

6 (b) The issuing court failed to make specific findings supporting  
7 the entitlement of both parties to be granted a protection order.

8 4. A peace officer may presume the validity of and rely on a copy  
9 of a protection order that is issued by another state, a United States  
10 territory or an Indian tribe if the order was given to the officer by any  
11 source. A peace officer may also rely on the statement of any person who  
12 is protected by the order that the order remains in effect. A peace  
13 officer who acts in good faith reliance on a protection order is not  
14 civilly or criminally liable for enforcing the protection order pursuant  
15 to this section.

16 W. For the purposes of this section, "victim notification system"  
17 means an automated system that may provide plaintiffs and crime victims  
18 with an automated notification regarding the person's case.

19 Sec. 2. Section 13-3967, Arizona Revised Statutes, is amended to  
20 read:

21 13-3967. Release on bailable offenses before trial:  
22 definition

23 A. At his appearance before a judicial officer, any person who is  
24 charged with a public offense that is bailable as a matter of right shall  
25 be ordered released pending trial on his own recognizance or on the  
26 execution of bail in an amount specified by the judicial officer.

27 B. In determining the method of release or the amount of bail, the  
28 judicial officer, on the basis of available information, shall take into  
29 account all of the following:

30 1. The views of the victim.

31 2. The nature and circumstances of the offense charged.

32 3. Whether the accused has a prior arrest or conviction for a  
33 serious offense or violent or aggravated felony as defined in section  
34 13-706 or an offense in another state that would be a serious offense or  
35 violent or aggravated felony as defined in section 13-706 if committed in  
36 this state.

37 4. Evidence that the accused poses a danger to others in the  
38 community.

39 5. The results of a risk or lethality assessment in a domestic  
40 violence charge that is presented to the court.

41 6. The weight of evidence against the accused.

42 7. The accused's family ties, employment, financial resources,  
43 character and mental condition.

44 8. The results of any drug test submitted to the court.

45 9. Whether the accused is using any substance if its possession or  
46 use is illegal pursuant to chapter 34 of this title.

10. Whether the accused violated section 13-3407, subsection A, paragraph 2, 3, 4 or 7 involving methamphetamine or section 13-3407.01.

11. The length of residence in the community.

12. The accused's record of arrests and convictions.

13. The accused's record of appearance at court proceedings or of flight to avoid prosecution or failure to appear at court proceedings.

14. Whether the accused has entered or remained in the United States illegally.

15. Whether the accused's residence is in this state, in another state or outside the United States.

C. If a judicial officer orders the release of a defendant who is charged with a felony either on his own recognizance or on bail, the judicial officer shall condition the defendant's release on the defendant's good behavior while so released. On a showing of probable cause that the defendant committed any offense during the period of release, a judicial officer may revoke the defendant's release pursuant to section 13-3968.

D. After providing notice to the victim pursuant to section 13-4406, a judicial officer may impose any of the following conditions on a person who is released on his own recognizance or on bail:

1. Place the person in the custody of a designated person or organization agreeing to supervise him.

2. Place restrictions on the person's travel, associates or place of abode during the period of release.

3. Require the deposit with the clerk of the court of cash or other security, such deposit to be returned on the performance of the conditions of release.

4. Prohibit the person from possessing any deadly weapon or engaging in certain described activities or indulging in intoxicating liquors or certain drugs.

5. Require the person to report regularly to and remain under the supervision of an officer of the court.

6. Impose any other conditions deemed reasonably necessary to assure appearance as required including a condition requiring that the person return to custody after specified hours.

E. In addition to any of the conditions a judicial officer may impose pursuant to subsection D of this section, the judicial officer shall impose both of the following conditions on a person who is charged with a felony violation of chapter 14 or 35.1 of this title or section 13-3212 ~~and who~~ OR A FELONY OFFENSE INVOLVING DOMESTIC VIOLENCE AS DEFINED IN SECTION 13-3601 THAT RESULTS IN PHYSICAL HARM AGAINST ANOTHER PERSON IF THE PERSON is released on his own recognizance or on bail:

1. Electronic monitoring where available.

2. A condition prohibiting the person from having any contact with the victim.

F. The judicial officer who authorizes the release of the person charged on his own recognizance or on bail shall do all of the following:

1           1. Issue an appropriate order containing statements of the  
2 conditions imposed.

3           2. Inform the person of the penalties that apply to any violation  
4 of the conditions of release.

5           3. Advise the person that a warrant for his arrest may be issued  
6 immediately on any violation of the conditions of release, including the  
7 failure to submit to deoxyribonucleic acid testing ordered pursuant to  
8 paragraph 4 of this subsection.

9           4. If the person is charged with a felony or misdemeanor offense  
10 listed in section 13-610, subsection 0, paragraph 3 and is summoned to  
11 appear, order the person to report within five days to the law enforcement  
12 agency that arrested the person or to the agency's designee and submit a  
13 sufficient sample of buccal cells or other bodily substances for  
14 deoxyribonucleic acid testing and extraction. If a person does not comply  
15 with an order issued pursuant to this paragraph, the court shall revoke  
16 the person's release.

17           G. At any time after providing notice to the victim pursuant to  
18 section 13-4406, the judicial officer who orders the release of a person  
19 on any condition specified in this section or the court in which a  
20 prosecution is pending may amend the order to employ additional or  
21 different conditions of release, including either an increase or reduction  
22 in the amount of bail. On application, the defendant shall be entitled to  
23 have the conditions of release reviewed by the judicial officer who  
24 imposed them or by the court in which the prosecution is pending.  
25 Reasonable notice of the application shall be given to the county attorney  
26 and the victim.

27           H. Any information that is stated or offered in connection with any  
28 order pursuant to this section need not conform to the rules pertaining to  
29 admissibility of evidence in a court of law.

30           I. This section does not prevent the disposition of any case or  
31 class of cases by forfeiture of bail or collateral security if such  
32 disposition is authorized by the court.

33           J. A judicial officer who orders the release of a juvenile who is  
34 enrolled in a school and who has been transferred to the criminal division  
35 of the superior court pursuant to section 8-327 or who has been charged as  
36 an adult pursuant to section 13-501 shall notify the appropriate school on  
37 the release of the juvenile from custody.

38           K. For the purposes of this section and section 13-3968, "judicial  
39 officer" means any person or court authorized pursuant to the constitution  
40 or laws of this state to bail or otherwise release a person before trial  
41 or sentencing or pending appeal.

42           ~~<<Sec. 3. Section 25-403.03, Arizona Revised Statutes, is amended~~  
43 ~~to read:~~

44           ~~START\_STATUTE25-403.03. Domestic violence; court~~  
45           ~~considerations; presumption; conditions on~~  
46           ~~parenting time; definition~~

1       ~~A. Notwithstanding subsection SUBSECTIONS D AND F of this section,~~  
2 ~~NEITHER joint legal decision-making NOR UNSUPERVISED PARENTING TIME shall~~  
3 ~~not be awarded if the court makes a finding of the existence of~~  
4 ~~significant domestic violence pursuant to section 13-3601 or if the court~~  
5 ~~finds by a preponderance of the evidence that there has been a significant~~  
6 ~~history of domestic violence. TO DETERMINE WHETHER SIGNIFICANT DOMESTIC~~  
7 ~~VIOLENCE OR A SIGNIFICANT HISTORY OF DOMESTIC VIOLENCE HAS OCCURRED, THE~~  
8 ~~COURT SHALL CONSIDER ALL OF THE FOLLOWING:~~

9       ~~1. THE SERIOUSNESS OF THE PARTICULAR ACT OR ACTS OF DOMESTIC~~  
10 ~~VIOLENCE.~~

11       ~~2. THE FREQUENCY OR PERVASIVENESS OF THE ACT OR ACTS OF DOMESTIC~~  
12 ~~VIOLENCE.~~

13       ~~3. THE AMOUNT OF TIME SINCE THE ACT OR ACTS OF DOMESTIC VIOLENCE~~  
14 ~~OCCURRED.~~

15       ~~4. THE IMPACT OF THE ACT OR ACTS OF DOMESTIC VIOLENCE.~~

16       ~~B. The court shall consider evidence of domestic violence as being~~  
17 ~~contrary to the best interests of the child. The court shall consider the~~  
18 ~~safety and well-being of the child TO BE THE CONTROLLING FACTOR IN ANY~~  
19 ~~DETERMINATION OF LEGAL DECISION-MAKING OR PARENTING TIME MATTER and THE~~  
20 ~~SAFETY of the victim of the act of domestic violence to be of primary~~  
21 ~~importance. The court shall consider a perpetrator's history of causing~~  
22 ~~or threatening to cause physical harm to another person.~~

23       ~~C. To determine if a person has committed an act of domestic~~  
24 ~~violence the court, subject to the rules of evidence, shall consider all~~  
25 ~~relevant factors, including the following:~~

26       ~~1. Findings from another court of competent jurisdiction.~~

27       ~~2. Police reports.~~

28       ~~3. Medical reports.~~

29       ~~4. Records of the department of child safety.~~

30       ~~5. Domestic violence shelter records.~~

31       ~~6. School records.~~

32       ~~7. Witness testimony.~~

33       ~~D. If the court determines that a parent who is seeking sole or~~  
34 ~~joint legal decision-making has committed an act of domestic violence~~  
35 ~~against the other parent, there is a rebuttable presumption that an award~~  
36 ~~of sole or joint legal decision-making to the parent who committed the act~~  
37 ~~of domestic violence is contrary to the child's best interests. This~~  
38 ~~presumption does not apply if both parents have committed an act of~~  
39 ~~domestic violence. For the purposes of this subsection, a person commits~~  
40 ~~an act of domestic violence if that person does any of the following:~~

41       ~~1. Intentionally, knowingly or recklessly causes or attempts to~~  
42 ~~cause sexual assault or serious physical injury.~~

43       ~~2. Places a person in reasonable apprehension of imminent serious~~  
44 ~~physical injury to any person.~~

45       ~~3. Engages in a pattern of behavior for which a court may issue an~~  
46 ~~ex parte order to protect the other parent who is seeking child custody or~~  
47 ~~to protect the child and the child's siblings.~~

1       ~~E. To determine if WHETHER the parent has rebutted the presumption~~  
2 ~~PRESCRIBED IN SUBSECTION D OF THIS SECTION, the court shall consider all~~  
3 ~~of the following:~~

4       ~~1. Whether the parent has demonstrated that being awarded sole or~~  
5 ~~joint legal decision-making or substantially equal parenting time is in~~  
6 ~~the child's best interests.~~

7       ~~2. Whether the parent has successfully completed a batterer's~~  
8 ~~prevention program.~~

9       ~~3. Whether the parent has successfully completed a program of~~  
10 ~~alcohol or drug abuse counseling, if the court determines that counseling~~  
11 ~~is appropriate.~~

12       ~~4. Whether the parent has successfully completed a parenting class,~~  
13 ~~if the court determines that a parenting class is appropriate.~~

14       ~~5. 2. If the parent is on probation, parole or community~~  
15 ~~supervision, whether the parent is restrained by a protective order that~~  
16 ~~was granted after a hearing.~~

17       ~~6. 3. Whether the parent has committed any further acts of~~  
18 ~~domestic violence.~~

19       ~~4. WHETHER THE PARENT HAS COMPLETED ANY OF THE FOLLOWING PROGRAMS~~  
20 ~~OR CLASSES, BUT THE COURT MAY NOT CONSIDER THE COMPLETION OF ANY PROGRAM~~  
21 ~~OR CLASS ALONE AS PROOF OF REHABILITATION OR THAT THE PARENT HAS REBUTTED~~  
22 ~~THE PRESUMPTION PRESCRIBED IN SUBSECTION D OF THIS SECTION:~~

23       ~~(a) A DOMESTIC VIOLENCE PROGRAM.~~

24       ~~(b) AN ALCOHOL OR DRUG ABUSE COUNSELING PROGRAM.~~

25       ~~(c) A PARENTING CLASS.~~

26       ~~F. If the court finds that a parent has committed an act of~~  
27 ~~domestic violence, that parent has the burden of proving to the court's~~  
28 ~~satisfaction that parenting time will not endanger the child or~~  
29 ~~significantly impair the child's emotional development. If the parent~~  
30 ~~meets this burden to the court's satisfaction, the court shall place~~  
31 ~~conditions on parenting time that best protect the child and the other~~  
32 ~~parent from further harm. The court may:~~

33       ~~1. Order that an exchange of the child must occur in a protected~~  
34 ~~setting as specified by the court.~~

35       ~~2. Order that an agency specified by the court must supervise~~  
36 ~~parenting time. If the court allows a family or household member to~~  
37 ~~supervise parenting time, the court shall establish conditions that this~~  
38 ~~person must follow during parenting time.~~

39       ~~3. Order the parent who committed the act of domestic violence to~~  
40 ~~attend and complete, to the court's satisfaction, a program of~~  
41 ~~intervention for perpetrators of domestic violence and any other~~  
42 ~~counseling the court orders.~~

43       ~~4. Order the parent who committed the act of domestic violence to~~  
44 ~~abstain from possessing or consuming alcohol or controlled substances~~  
45 ~~during parenting time and for twenty-four hours before parenting time.~~

46       ~~5. Order the parent who committed the act of domestic violence to~~  
47 ~~pay a fee for the costs of supervised parenting time.~~

1       ~~6. Prohibit overnight parenting time.~~  
2       ~~7. Require a bond from the parent who committed the act of domestic~~  
3 ~~violence for the child's safe return.~~  
4       ~~8. Order that the address of the child and the other parent remain~~  
5 ~~confidential.~~  
6       ~~9. Impose any other condition that the court determines is~~  
7 ~~necessary to protect the child, the other parent and any other family or~~  
8 ~~household member.~~  
9       ~~G. The court shall not order joint counseling between a victim and~~  
10 ~~the perpetrator of domestic violence. The court may provide a victim with~~  
11 ~~written information about available community resources related to~~  
12 ~~domestic violence.~~  
13       ~~H. The court may request or order the services of the department of~~  
14 ~~child safety if the court believes that a child may be the victim of child~~  
15 ~~abuse or neglect as defined in section 8-201.~~  
16       ~~I. In determining whether the absence or relocation of a parent~~  
17 ~~shall be weighed against that parent in determining legal decision-making~~  
18 ~~or parenting time, the court may consider whether the absence or~~  
19 ~~relocation was caused by an act of domestic violence by the other parent.~~  
20       ~~J. FOR THE PURPOSES OF THIS SECTION, "SIGNIFICANT DOMESTIC~~  
21 ~~VIOLENCE" INCLUDES ANY OF THE FOLLOWING:~~  
22       ~~1. THE THREATENED, RISKED OR INFLICTED PHYSICAL INJURY OR EMOTIONAL~~  
23 ~~TRAUMA, INCLUDING SEXUAL ASSAULT, BY A PARENT ON A CHILD OR THE OTHER~~  
24 ~~PARENT.~~  
25       ~~2. AN ACT OR ACTS BY A PARENT THAT INVOLVE THE THREAT, USE OR~~  
26 ~~BRANDISHING OF A FIREARM OR OTHER DANGEROUS WEAPON TO THREATEN OR~~  
27 ~~INTIMIDATE A CHILD OR THE OTHER PARENT.~~  
28       ~~3. A PARENT'S PATTERN OF COERCIVE OR CONTROLLING BEHAVIOR THAT IS~~  
29 ~~INTENDED TO DOMINATE, INTIMIDATE, ISOLATE OR RESTRICT THE AUTONOMY OF THE~~  
30 ~~OTHER PARENT, INCLUDING ANY OF THE FOLLOWING:~~  
31       ~~(a) CONTROLLING OR MONITORING DAILY ACTIVITIES, MOVEMENTS,~~  
32 ~~COMMUNICATIONS, FINANCES, TRAVEL, ASSOCIATIONS OR ACCESS TO SERVICES.~~  
33       ~~(b) ISOLATING THE OTHER PARENT FROM FAMILY OR SUPPORT SYSTEMS.~~  
34       ~~(c) USING THREATS, INCLUDING THREATS OF SELF-HARM OR SUICIDE, TO~~  
35 ~~COMPEL COMPLIANCE.>>~~

36   Enroll and engross to conform  
37   Amend title to conform

LISA FINK

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